

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK-----X  
RICKY CLECKLEY,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER KEITH  
KEALY, SHIELD NUMBER 23207, AND  
DETECTIVE PETER NANGLE, SHIELD  
NUMBER 05601,Defendants.  
-----X

Index No.:

Date Purchased:

Plaintiff designates New York  
County as the place of trial.Basis of venue is place  
of occurrence.SUMMONS

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York  
January 26, 2018  
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.  
By: Tracie A. Sundack, Esq.  
Attorneys for Plaintiff  
RICKY CLECKLEY  
19 Court Street, 3<sup>rd</sup> Floor  
White Plains, New York 10601  
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK  
100 Church Street  
New York, New York 10007POLICE OFFICER KEITH KEALY,  
SHIELD NUMBER 23207,  
DETECTIVE PETER NANGLE,  
SHIELD NUMBER 05601,  
Midtown South Precinct  
357 West 35<sup>th</sup> Street  
New York, New York 10001

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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RICKY CLECKLEY,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER KEITH  
KEALY, SHIELD NUMBER 23207, AND  
DETECTIVE PETER NANGLE, SHIELD  
NUMBER 05601,

**VERIFIED COMPLAINT**

Defendants.  
-----X

Plaintiff RICKY CLECKLEY by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, respectfully alleges as follows:

1. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned Defendant POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, was assigned to Midtown South Precinct (357 West 35<sup>th</sup>

Street, New York, New York 10001).

6. That at all times hereinafter mentioned Defendant POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

7. That at all times hereinafter mentioned Defendant DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned Defendant DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned Defendant DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, was assigned to Midtown South Precinct (357 West 35<sup>th</sup> Street, New York, New York 10001).

10. That at all times hereinafter mentioned Defendant DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

11. That on October 26, 2015, at approximately 12:05 P.M., Plaintiff RICKY CLECKLEY was walking eastbound on West 36<sup>th</sup> Street, between Seventh Avenue and Eighth Avenue, in the County, City, and State of New York.

12. That on the aforementioned date and time, when Plaintiff RICKY CLECKLEY was across from 237 West 36<sup>th</sup> Street, New York, New York, he was suddenly accosted by members of the New York City Police Department including Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601.

13. That, at the aforementioned date, time and place, Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, stopped Plaintiff RICKY CLECKLEY and asked, in sum and substance, what Plaintiff had in his pockets. Plaintiff RICKY CLECKLEY responded that all he had was his wallets and cell phone. At that time, Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, grabbed Plaintiff, threw him against a nearby wall, and proceeded to search Plaintiff. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff RICKY CLECKLEY's arrest. After the search was completed, Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, placed Plaintiff under arrest for Criminal Sale of a Controlled Substance despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

14. That, on October 26, 2015, at approximately 12:05 P.M., Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, forcibly, wrongfully and unlawfully arrested Plaintiff RICKY CLECKLEY.

15. That following his arrest, Plaintiff RICKY CLECKLEY was transported to the Midtown South Precinct (357 West 35<sup>th</sup> Street, New York, New York 10001) of the New York City Police Department where he was subjected to an illegal strip-search and his arrest was processed. Plaintiff RICKY CLECKLEY was then transported to Manhattan Central Booking (100 Center Street, New York, New York) for arraignment. Following arraignment, Plaintiff RICKY CLECKLEY was transported to, and incarcerated in, the Manhattan Detention Complex (125 White Street, New York, New York 10013).

16. That Plaintiff RICKY CLECKLEY was held from October 26, 2015 until December 21, 2015, when he was released after posting bail.

17. That on November 22, 2016, all criminal charges against Plaintiff RICKY CLECKLEY were dismissed (Docket Number 2015NY069765 - Supreme Court of the State of

New York, County of New York).

18. That on February 3, 2017, within 90 days of the Plaintiff's acquittal of all criminal charges, but more than 30 days prior to the commencement of this action, Plaintiff RICKY CLECKLEY duly presented, served, and filed a Notice of Claim for malicious prosecution, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

19. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601.

20. That, upon information and belief, Defendant CITY OF NEW YORK has waived its right to a Municipal Hearing in this matter.

21. This action is commenced within one year and ninety days after the alleged state law cause(s) of action arose.

22. As a result of the foregoing, Plaintiff RICKY CLECKLEY sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR  
FALSE ARREST UNDER 42 U.S.C. § 1983**

23. Plaintiff RICKY CLECKLEY repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

24. That at the aforementioned time and place, Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, placed Plaintiff RICKY CLECKLEY under arrest despite Defendants' knowledge that they lacked probable cause to do so.

25. That Plaintiff RICKY CLECKLEY had not committed any offense and Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER

NANGLE, SHIELD NUMBER 05601, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

26. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, were aware that probable cause did not exist for the arrest and detention of Plaintiff RICKY CLECKLEY and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff RICKY CLECKLEY and such actions were committed in bad faith.

27. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff RICKY CLECKLEY and such actions were committed in bad faith.

28. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff RICKY CLECKLEY was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

29. As a further result of the above-described acts, Plaintiff RICKY CLECKLEY was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR  
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

30. Plaintiff RICKY CLECKLEY repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

31. That Plaintiff RICKY CLECKLEY was falsely imprisoned from October 26, 2015, to December 21, 2015, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.'

32. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, intended to confine Plaintiff RICKY CLECKLEY and Plaintiff RICKY CLECKLEY was conscious of the confinement, and Plaintiff RICKY CLECKLEY did not consent to the confinement.

33. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff RICKY CLECKLEY and damaging Plaintiff RICKY CLECKLEY in his reputation and depriving him of his liberty.

34. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff RICKY CLECKLEY suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR  
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

35. Plaintiff RICKY CLECKLEY repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

36. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, misrepresented and falsified

evidence before the District Attorney.

37. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, did not make a complete and full statement of facts to the District Attorney.

38. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, withheld exculpatory evidence from the District Attorney.

39. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, were directly and actively involved in the initiation of criminal proceedings against Plaintiff RICKY CLECKLEY.

40. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, lacked probable cause to initiate criminal proceedings against Plaintiff RICKY CLECKLEY.

41. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, acted with malice in initiating criminal proceedings against Plaintiff RICKY CLECKLEY.

42. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, were directly and actively involved in the continuation of criminal proceedings against Plaintiff RICKY CLECKLEY.

43. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, lacked probable cause to continue criminal proceedings against Plaintiff RICKY CLECKLEY.

44. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, acted with malice in continuing criminal proceedings Plaintiff RICKY CLECKLEY.

45. That Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601 and UNDERCOVER



DETECTIVE NUMBER 288, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

46. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, the criminal proceedings were terminated in Plaintiff RICKY CLECKLEY's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR  
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

47. Plaintiff RICKY CLECKLEY repeats, reiterates and realleges each and every allegation contained in this complaint.

48. Each and every individual Defendant had an affirmative duty to intervene on Plaintiff RICKY CLECKLEY's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

49. As a result of the aforementioned conduct of the individual Defendants, Plaintiff RICKY CLECKLEY's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR  
MUNICIPAL LIABILITY**

50. Plaintiff RICKY CLECKLEY repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

51. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

52. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in

order to satisfy an arrest quota.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff RICKY CLECKLEY.

54. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff RICKY CLECKLEY as alleged herein.

55. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff RICKY CLECKLEY as alleged herein.

56. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff RICKY CLECKLEY's constitutional rights.

57. All of the foregoing acts by defendants deprived Plaintiff RICKY CLECKLEY of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION  
UNDER NEW YORK STATE LAW**

58. Plaintiff RICKY CLECKLEY repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

59. On or about November 20, 2015, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, commenced

a criminal proceeding against Plaintiff RICKY CLECKLEY, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

60. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff RICKY CLECKLEY had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no need for the arrest and imprisonment of Plaintiff.

61. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, were directly and actively involved in the initiation of criminal proceedings against Plaintiff RICKY CLECKLEY.

62. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, lacked probable cause to initiate criminal proceedings against Plaintiff RICKY CLECKLEY.

63. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, were motivated by actual malice in initiating criminal proceedings against Plaintiff RICKY CLECKLEY

64. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, misrepresented and falsified evidence before the District Attorney.

65. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, did not make a complete and full statement of facts to the District Attorney.

66. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, withheld exculpatory evidence from the District Attorney.

67. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, were directly and actively involved in the continuation of criminal proceedings against Plaintiff RICKY CLECKLEY.

68. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, lacked probable cause to continue criminal proceedings against Plaintiff RICKY CLECKLEY.

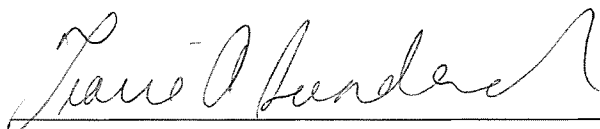
69. Defendants POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, were motivated by actual malice in continuing criminal proceedings against Plaintiff RICKY CLECKLEY.

70. That, notwithstanding the perjurious and fraudulent conduct of Defendants, the criminal proceedings were terminated in Plaintiff RICKY CLECKLEY's favor.

71. As a result of the foregoing, Plaintiff RICKY CLECKLEY is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

**WHEREFORE** Plaintiff RICKY CLECKLEY demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER KEITH KEALY, SHIELD NUMBER 23207, and DETECTIVE PETER NANGLE, SHIELD NUMBER 05601, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York  
January 26, 2018



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

RICKY CLECKLEY

19 Court Street, 3<sup>rd</sup> Floor

White Plains, New York 10601

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK                    }  
COUNTY OF WESTCHESTER        } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirrant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York  
January 26, 2018

  
\_\_\_\_\_  
TRACIE A. SUNDACK